

TENTATIVE RULING

Case: **Kalmykov v. Shell Point Mortgage Servicing**
Case No. CV2023-0547

Hearing Date: **August 6, 2026** **Department Thirteen** **9:00 a.m.**

Motion to continue trial:

Plaintiff Nikolay Kalmykov’s motion to continue trial date and pretrial deadlines is **DENIED**. (Cal. Rules of Court, rule 3.1332.) Plaintiff has not made an affirmative showing of good cause requiring the continuance. (Cal. Rules of Court, rule 3.1332(a), (c).) Specifically, plaintiff has not established his “excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts.” (Cal. Rules of Court, rule 3.1332(c)(6).) While plaintiff asserts that he served discovery requests on defendant, he does not state when the discovery was served, why it was not served earlier, and why it is essential to this case. (*Ibid.*; see Kalmykov decl., ¶¶ 2-4 & 12, Exhibit A.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Trial readiness conference:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: **Rojas v. Yolo Eats, Inc.**
 Case No. CV2024-1256

Hearing Date: **August 6, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiff Kaitlyn Rojas' unopposed motion for final approval of class action and PAGA settlement and motion for attorneys' fees, costs, and class representative enhancement award. (Cal. Rules of Court, rule 3.769(e), (g).)